Deprivation Due to Incapacity	**Number**	**Page**
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Revision Date:
August 1, 2024

Background:
Deprivation of parental support or care is a separate and specific eligibility factor for CalWORKs. A child's deprivation is based on the status of their natural or adoptive parent(s). There is no CalWORKs eligibility unless deprivation requirements are met.

Purpose:
Thise section outlines the CalWORKs policies on deprivation due to incapacity. The purpose of this revision is for sunset review and reformatting to the current standards. There is no policy change.

Policy:
Deprivation due to physical or mental incapacity of a parent is deemed to exist when the parent of an otherwise eligible child has a physical or mental illness, defect, or impairment that reduces substantially, or eliminates the parent's ability to support or care for the child for a period which is expected to last at least 30 days.

Criteria for Incapacity
Incapacity deprivation exists if the incapacity meets at least one of the following criteria:

- Prevents the parent from working full-time:
  - At a job in which they have normally worked.
  - On another job for which they have attained education, training, experience, or can be learned by on-the-job training.
- The incapacity Is the reason employers refuse to employ the parent for the work they could do. This includes behavioral disorders which interfere with the securing and maintaining of employment.
- Prevents the parent from accomplishing as much on a job as other employees and is the reason the parent is paid on a reduced basis even though working full time.
- Qualifies the parent to be employed in a job which is rehabilitative, therapeutic or in a sheltered workshop not considered to be a full-time job.
- Reduces substantially or eliminates the parent's ability to care for the child.

Determination of Incapacity
When making a determination that incapacity exists, staff will take into consideration the limited employment opportunities of the customer with the disability. The following are acceptable verification of incapacity:

- A written statement, current award letter or copy of benefit payment from the agency authorizing the disability payment such as benefits from:
  - Social Security Administration (Disability based income).
  - State Disability Insurance Benefits.
  - Worker's Compensation.
  - Supplemental Security Income (SSI)/State Supplemental Payment (SSP).

Note: Receipt of SSI/SSP because of age (65+) does not establish deprivation based on incapacity.

- Medical verification form (such as, but not limited to; CW 61A *Physical Capacities*, CW 61B *Mental Capacities*, and 07-388 HHSA *Authorization to Release Medical Information*) or a written statement completed by a licensed healthcare provider that provides information sufficient to verify the incapacity that includes all of the following:
  - A diagnosis of the parent's condition.
  - Explanation to which the condition prevents the parent form engaging in employment or why it reduces substantially or eliminates their ability to support or care for the child.
  - The duration of the condition.
  - The date of the next scheduled medical examination or appointment.
  - The name, address, and phone number of the healthcare provider.

Note: Verbal statements can be accepted when there is a delay in obtaining a written statement for reasons beyond the customer's control. A verbal statement from the physician, licensed or certified psychologist, or an authorized staff member with access to the customer's medical records verifying incapacity will be accepted pending the written verification for up to 60 days.

If a verbal statement is obtained, the journal entry must include all of the following:
- The date the verification was obtained.
- The name of the person who provided the verification.
- The name of the staff who obtained the verification.

Review of Incapacity

The deprivation of incapacity does not exist when:
- The verification provided does not meet the criteria.
- The incapacity is expected to be less than 30 days.

If deprivation due to incapacity cannot be established, staff will evaluate the case to determine if another basis of deprivation can be established.

If an application was denied due to the incapacity is not expected to last at least 30 days, and later on it is established that the incapacity is to exceed 30 days, the denial will be rescinded and payment will be granted retroactively effective the appropriate beginning date of aid.

Once deprivation due to incapacity has been determined at application, it is required to be re-established and reverified at the following times:
- Annual redetermination when the duration of the incapacity is expected to last more than one year or is permanent.
- 30 days prior to the end date of the incapacity when the duration of the incapacity is not expected to last more than one year.
- When there is a reason to believe that there has been a change in the condition.
  - For example, during the Semi-Annual Reporting (SAR) review, there is an indication that the incapacitated parent is now employed.

References:
Manual of Policies and Procedures (MPP) 41-430

Sunset Date:
This policy will be reviewed for continuance by August 31, 2027.

Approval for Release:

8-6-24

Rick Wanne, Director
Self-Sufficiency Services